

Court No. - 21

Case :- WRIT - C No. - 62234 of 2012

Petitioner :- Ajeet Kumar

Respondent :- State Of U.P. Thru Secy. And Others

Petitioner Counsel :- Om Prakash Mishra(Nandan)

Respondent Counsel :- C.S.C.,Mahboob Ahmad

Hon'ble Satya Poot Mehrotra,J.

Hon'ble Het Singh Yadav,J.

Issue notice pending admission.

Notice on behalf of the respondent no. 1 has been accepted by the learned Standing Counsel.

Notice on behalf of the respondent nos. 2 to 4 has been accepted by Shri Mahboob Ahmad, learned counsel for the said respondents.

Therefore, notice need not be sent to the respondents.

Counter affidavit on behalf of the respondents may be filed within two weeks.

Rejoinder affidavit may be filed by the next date fixed in the matter.

List this case on 4.1.2013.

The case will be listed amongst the cases listed at the top of the cause list of the said date.

Order Date :- 3.12.2012

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Court No. - 38

Case :- WRIT - C No. - 62234 of 2012

Petitioner :- Ajeet Kumar

Respondent :- State Of U.P. Thru Secy. And Others

Counsel for Petitioner :- Om Prakash Mishra(Nandan)

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Ran Vijai Singh,J.

Hon'ble Mukhtar Ahmad,J.

List this case in the next cause list showing the name of Sri Narendra Tiwari, learned counsel for the respondents no. 2 and 4.

In view of the fact that Sri Narendra Tiwari is not present in the court, learned counsel for the petitioner is directed to serve two copies of the writ petition to Sri Tiwari before the next date of listing.

Order Date :- 10.1.2018

Pratima

Court No. - 38

Case :- WRIT - C No. - 62234 of 2012

Petitioner :- Ajeet Kumar

Respondent :- State Of U.P. Thru Secy. And Others

Counsel for Petitioner :- Om Prakash Mishra(Nandan)

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Ran Vijai Singh,J.

Hon'ble Mukhtar Ahmad,J.

List correctly showing the name of Sri Narendra Kumar Tiwari, learned Advocate as Counsel for the respondent in the next cause list.

In the meantime, he may seek instructions in the matter.

Order Date :- 18.1.2018

Shahid

Court No. - 38

Case :- WRIT - C No. - 62234 of 2012

Petitioner :- Ajeet Kumar

Respondent :- State Of U.P. Thru Secy. And Others

Counsel for Petitioner :- Om Prakash Mishra(Nandan)

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Ran Vijai Singh,J.

Hon'ble Mukhtar Ahmad,J.

Case has been called out. No one appears on behalf of the petitioner. Learned Standing Counsel appears for the State.

In view of the general request made by the Bar, circulated through the office of Hon'ble the Chief Justice not to pass any adverse order today, the case is being passed over for the day.

Order Date :- 5.2.2018

M.A.Ansari

Court No. - 38

Case :- WRIT - C No. - 62234 of 2012

Petitioner :- Ajeet Kumar

Respondent :- State Of U.P. Thru Secy. And Others

Counsel for Petitioner :- Om Prakash Mishra(Nandan)

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Ran Vijai Singh,J.

Hon'ble Mukhtar Ahmad,J.

List has been revised. No one appears for either of the parties.

By means of this writ petition, prayer has been made to issue a writ of certiorari quashing the order dated 10.10.2012 passed by the Chairman, Electricity Consumer Redressal Forum, by which the petitioner's complaint registered as Complaint Case No. 8 of 2012 (Ajeet Kumar Vs. Executive Engineer) has been partly allowed with the direction to the respondents to provide amended bill to the petitioner with the liberty to the petitioner to make payment as per amended bill.

While entertaining the writ petition on 3.12.2012, notices were issued to the respondents pursuant thereto Sri Mahboob Ahmad, learned Counsel has put in appearance on behalf of the respondents no. 2 and 4. Learned Standing Counsel appeared for respondent no.1.

Looking into the order under challenge, it appears to us that by efflux of time, either the grievance of the petitioner had been redressed or he is not willing to pursue this petition.

The writ petition is dismissed as having become infructuous. However, in case any thing survives, it will be open for the petitioner to seek recall of this order.

Order Date :- 12.2.2018

Shahid

Court No. - 38

Case :- WRIT - C No. - 62234 of 2012

Petitioner :- Ajeet Kumar

Respondent :- State Of U.P. Thru Secy. And Others

Counsel for Petitioner :- Om Prakash Mishra(Nandan)

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

In Restoration Application:

Hon'ble Ran Vijai Singh,J.

Hon'ble Mukhtar Ahmad,J.

We have heard learned Counsel for the applicant/petitioner.

This is an application to recall the order dated 12.02.2018 by which the writ petition was dismissed for want of prosecution. The cause shown is sufficient.

The restoration application is allowed. The order dated 12.02.2018 is recalled and the writ petition is restored to its original number.

Order Date :- 8.3.2018

Shahid

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Court No. - 38

Case :- WRIT - C No. - 62234 of 2012

Petitioner :- Ajeet Kumar

Respondent :- State Of U.P. Thru Secy. And Others

Counsel for Petitioner :- Om Prakash Mishra(Nandan)

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Ran Vijai Singh,J.

Hon'ble Mukhtar Ahmad,J.

Allowed. For order see order of date passed on the order sheet.

Order Date :- 8.3.2018

Shahid

Court No. - 35

Case :- WRIT - C No. - 62234 of 2012

Petitioner :- Ajeet Kumar

Respondent :- State Of U.P. Thru Secy. And Others

Counsel for Petitioner :- Om Prakash Mishra(Nandan)

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Bharati Sapru,J.

Hon'ble Saral Srivastava,J.

Heard Shri O.P. Mishra (Nandan), learned counsel for the petitioner and Shri N.K. Tiwari, learned counsel for the respondents nos.2 and 4.

The present writ petition has been filed by the petitioner for a writ of certiorari to quash the order dated 10.10.2012 passed by the Chairman, Electricity Consumer Redressal Forum.

Learned counsel for the respondents pointed out that Clause 7.10 (iv) provides that any consumer aggrieved by non-redressal of his grievances by the Consumer Grievance Redressal Forum, may make a representation for the redressal of his grievance to an Ombudsman as designated/appointed by the Commission in accordance with the procedure specified in UPERC (Consumer Grievance Redressal Forum and Ombudsman) Regulation, 2003.

It is, therefore, open to the petitioner to take recourse to the remedy provided to him under Clause 7.10 (iv) of the U.P. Electricity Supply Code, 2005.

In case, the petitioner files his representation before the Ombudsman as designated/appointed by the Commission within a period of one month, the same shall be disposed of in accordance with law. The delay, if any, in approaching the Ombudsman is condoned by this Court.

Till then no coercive action may be taken against the petitioner.

With the aforesaid observation, the writ petition stands disposed of.

Order Date :- 11.4.2018

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